

SCHEDULED AND TRIBAL AREAS

Constitutional Provisions

- **Article 244 & Part X:** Special Administration for **Scheduled Areas (SAs) & Tribal Areas (TAs)**.
- **5th Schedule:** Governs **scheduled areas** and **tribes** in all states except Assam, Meghalaya, Tripura, and Mizoram (AMTM). [UPSC 2015]
- **6th Schedule:** Governs **tribal areas** in Assam, Meghalaya, Tripura, and Mizoram. [UPSC 2015]
- **The provisions in the Fifth Schedule and Sixth schedule in the Constitution of India are made in order to protect the interests of Scheduled Tribe** [UPSC 2015]

Aspect	Fifth Schedule	Sixth Schedule
Purpose	Supervision and administration of Scheduled Areas.	Constitution, powers, and functions of District and Regional Councils in autonomous districts.
Coverage	Protects tribal interests in all scheduled territories, excluding Assam, Meghalaya, Tripura, and Mizoram.	Addresses scheduled regions not covered by the Fifth Schedule.
Special Areas	Safeguards tribal communities in states except Assam, Mizoram, Tripura, and Meghalaya.	Focuses on welfare of tribal communities in in the northeastern states of Assam, Meghalaya, Tripura and Mizoram..
Advisory Council	Establishes a Tribal Advisory Council.	Defines the authority and functions of District and Regional Councils in autonomous districts.
Governor's Role	Empowers the Governor to adapt legislation for unique local needs.	Allows the Governor to designate regions autonomous district council jurisdiction as per the Sixth Schedule.

ADMINISTRATION OF SCHEDULED AREAS (5TH SCHEDULE)

- Due to their distinct socio-economic profile, **scheduled areas** require special attention, with the **Central Government** having a greater role.
- The **President** appoints a commission to report on **Scheduled Areas** and **Scheduled Tribes (STs)**, at least once every 10 years.
 - **Notable Commissions:** U N Dhebar (1960) & Dilip Singh Bhuria (2002).
- As of 2024, **scheduled areas** exist 10 states namely Andhra Pradesh, Telangana, Jharkhand, Chhattisgarh, Gujarat, Himachal Pradesh, Madhya Pradesh, Maharashtra, Odisha, and Rajasthan.
- **Declaration of Scheduled Areas:** The **President** can declare, modify, or redesignate **Scheduled Areas** after consulting the state's **Governor**. [UPSC 2023]
- **Executive Power:** State's executive power extends to **Scheduled Areas**, but the **Governor** has special authority.
 - The **Governor** must report to the President on the area's administration.
 - The **Centre** can issue directives to the state regarding these areas.
- **Tribes Advisory Council (TAC):** Each state with **Scheduled Tribes (STs)** must establish a TAC to advise on welfare measures.
 - The TAC has 20 members, 3/4th of whom represent STs from the State Legislative Assembly.
 - States without **Scheduled Areas** can have a TAC if directed by the **President**.
- **Laws for Scheduled Areas:** The **Governor** decides whether state or central laws apply to **Scheduled Areas**, with or without modifications.
 - The **Governor** can make regulations for the governance of **Scheduled Areas**, including restrictions on land transfers among STs. Such regulations may prohibit or restrict the transfer of land by or among members of the STs, regulate the allotment of land to members of the STs and regulate the business of money lending in relation to the STs. [UPSC 2022]

- In the *Samatha v. State of Andhra Pradesh & Ors* (1997) judgement the Supreme Court held that the transfer of **tribal land to private parties for mining** was null and void under the Fifth Schedule. [UPSC 2019]

ADMINISTRATION OF TRIBAL AREAS (6TH SCHEDULE)

- **6th Schedule:** Administration of **tribal areas** in 4 North Eastern states of **Assam, Meghalaya, Tripura & Mizoram (AMTM)**.
- **Rationality behind the arrangement:** To protect the culture, customs & civilizations of people of such areas, who still need to assimilate with the majorities in such areas.

States	Tribal Areas
Assam	1. The North Cachar Hills District. 2. The Karbi Anglong District. 3. The Bodoland Territorial Areas District
Tripura	Tripura Tribal Areas District.
Meghalaya	1. Khasi Hills District. 2. Jaintia Hills District. 3. The Garo Hills District
Mizoram	1. The Chakma District. 2. The Mara District. 3. The Lai District.

Features of Administration as per 6th Schedule

- **Autonomous Districts (ADs):** Tribal areas in **Assam, Meghalaya, Tripura, and Mizoram (AMTM)** are governed as **Autonomous Districts (ADs)** under the **state executive authority**.
 - The **Governor** has the power to organise, reorganise, and divide ADs into **autonomous regions** if multiple tribes inhabit them.
- **District Councils:** Each **Autonomous District** has a **District Council** with 30 members:
 - **26 elected members** (5-year term).
 - **4 nominated members** (at the pleasure of the **Governor**).
 - Each autonomous region has its own **Regional Council**.

Powers & Functions of District & Regional Councils

- **Legislative Authority:** Councils can make laws on **land, forests, water**, etc., but require the **Governor's assent**.
- **Judicial Authority:** Councils can establish **Village Councils/Courts** to adjudicate tribal disputes, with oversight from the **High Courts**, as directed by the **Governor**.

Administrative Functions:

- Councils manage **primary schools, dispensaries, markets, ferries, and roads**.
- They can regulate **money lending and trading** by non-tribals, with the **Governor's approval**.
- **Revenue Powers:** Councils can assess and collect **land revenue** and impose **specific taxes**.
- **Application of Central and State Laws:**
 - **Central/State Acts** apply to autonomous districts/regions with **modifications or exceptions**:
 - ◆ In **Assam**, the **Governor** decides on both Central and State Acts.
 - ◆ In **Meghalaya, Tripura, and Mizoram**, the **President** decides on Central Acts and the **Governor** on State Acts.
- **Commissions:** The **Governor** can appoint a **commission** to review the administration of autonomous regions and dissolve District or Regional Councils based on its recommendations.

SPECIAL PROVISIONS FOR SOME STATES

Originally, the Constitution **did not make any special provisions** for these states. They have been incorporated by the various subsequent amendments made in the context of the reorganisation of the states or conferment of statehood on the Union Territories.

Special Provisions

Articles	Article 371 to 371 J, Part XXI
12 States	Maharashtra, Gujarat, Nagaland, Assam, Manipur, Andhra Pradesh, Telangana, Sikkim, Mizoram, Arunachal Pradesh, Goa, Karnataka.
Objectives	● To meet the aspiration of the people of the backward region; ● To protect Cultural and economic interest of tribal People; ● To protect the interest of local people of the state; ● Deal with disturbed law and order conditions in some parts of the state.

CONSTITUTIONAL PROVISIONS UNDER ARTICLE 371

Maharashtra and Gujarat (Article 371)

- **Governor's Responsibilities:**
 - **Establish Development Boards** for Vidarbha, Marathwada, Saurashtra, and Kutch.
 - **Equitable Allocation** of funds for development.
 - **Facilities for Technical Education** and vocational training.

- **Employment Opportunities** in state services for these regions.
- **Annual Performance Reports** to the State Legislative Assembly.

Nagaland (Article 371A)

- **Introduced by the 13th Amendment (1962):**
 - **Governor's Role** in maintaining law and order until disturbances cease. Governor's decision is final in this regard. This special responsibility of the Governor shall cease when President so directs.
 - **Central Funds** must be included in Demand for Grants.
 - **Tuensang District:**
 - ◆ **Regional Council** with 35 members.
 - ◆ **Special Provisions** for ten years under the Governor's administration.
 - ◆ The acts of Parliament relating to Naga customary law, religious and social practices, administration of civil and criminal justice and ownership and transfer of land would not apply unless the State Legislative Assembly so decides.

Assam (Article 371B)

- **Introduced by the 22nd Amendment (1969):**
 - **The President can form a Committee** of the Legislative Assembly with members from tribal areas.

Manipur (Article 371C)

- **Introduced by the 27th Amendment (1971):**
 - **President is authorised to provide for Committee for Hill Areas** in the Legislative Assembly.
 - **Governor's Special Responsibility** for committee functioning and annual reports.

Andhra Pradesh and Telangana (Article 371D & 371E)

- **Article 371D: President is empowered to provide for equitable Opportunities** in public employment and education.
 - **Local Cadres for Civil Posts** and establishment of an Administrative Tribunal.
- **Article 371E: Parliament can establish a Central University** in Andhra Pradesh.

Sikkim (Article 371F)

- **Introduced by the 36th Amendment (1975):**
 - **The Legislative Assembly** must have at least 30 members.
 - **One Lok Sabha seat** allocated to Sikkim.
 - **Governor's Role** in maintaining peace and advancing social and economic interests.
 - The President can extend any law (which is in force in any state of the Indian Union) with modifications and restrictions into Sikkim.

Mizoram (Article 371G)

- **Introduced by the 53rd Amendment (1986):**
 - **Parliament Acts** on certain matters apply only if the State Assembly agrees.
 - **The Legislative Assembly** must have at least 40 members.

Arunachal Pradesh (Article 371H)

- **Introduced by the 55th Amendment (1986):**
 - **Governor's Responsibility** for law and order with final decision-making authority.
 - **The Legislative Assembly** must have at least 30 members.

Goa (Article 371I)

- **Introduced by the 56th Amendment (1987):**
 - **The Legislative Assembly** must consist of not less than 30 members.

Karnataka (Article 371J)

- **Introduced by the 98th Amendment:**
 - **Development Board for Hyderabad-Karnataka Region:**
 - ◆ **Oversee Development Initiatives.**
 - ◆ **Annual Reports** for transparency.
 - **Equitable Fund Allocation and Reservations** in education and vocational training institutions and state government posts for local residents.

SPECIAL CATEGORY STATUS (SCS) IN INDIA

The Indian constitution does not make provisions for SCS. It was introduced by 5th finance commission in 1969 which includes special provisions for certain states to address unique needs, preserve cultural distinctiveness, and ensure administrative autonomy.

Criteria for SCS

1. **Hilly Terrain:** States with difficult geography, e.g., Himachal Pradesh.
2. **Low Population Density/Significant tribal Population:** Areas needing socio-economic development, e.g., Arunachal Pradesh.
3. **Strategic Border Locations:** Essential for national security, e.g., Jammu and Kashmir (pre-2019 changes).
4. **Economic Backwardness:** States lacking infrastructure and development, e.g., Uttarakhand.
5. **Weak Finances:** States struggling financially, e.g., Manipur.

Recent Changes: The 14th Finance Commission abolished SCS for most states, retaining it only for the Northeastern states and three hill states. It increased tax devolution from 32% to 42% to fill the resource gap.

OFFICIAL LANGUAGE IN INDIA

Constitutional Provisions on Official Languages

Languages of the Union

- **Article 343:** **Hindi** (Devanagari script) is the official language of the Union; **English** continues for official purposes, extendable by Parliament.
- **Article 344:** Commission and **Parliamentary Committee** to recommend the use of Hindi and restrictions on English.
- **President-appointed commissions** recommend Hindi usage and restrictions on English every 5 and 10 years.
- **Official Languages Act (1963):** Continued **English use**; amended in 1967 to make English and Hindi compulsory in some cases.
- **Key Commissions:** **B.G. Kher Commission (1955) & Parliamentary Committee under G.B. Pant (1957)**

Regional Languages

- **Article 345:** States may adopt any **language(s)** or Hindi as their official language.
- **Article 346:** **English** serves for communication between **Union and States**.
- **Article 347:** President can recognize **minority languages** in states.

Language of Judiciary & Legal Texts

- **Article 348:** **English** for all **judicial proceedings** and legal documents.
- **Article 349:** Special procedure for language laws.
- **State languages** can be authorised in High Courts (except for judgments) with the President's approval.
- Parliament has not mandated **Hindi** use in the Supreme Court.

Official Languages Act (1963)

- **Hindi translations** of official documents are authoritative.
- **Bills** require **Hindi translations**.
- Governors with prior consent of President may authorise **Hindi** in High Courts, with English translations.

Special Directives

- **Article 350:** Language for **grievances**.
- **Article 350A:** **Mother tongue education** for linguistic minorities.
- **Article 350B:** **Special officer** to monitor safeguards for linguistic minorities.
- **Article 351:** Promote **Hindi** to represent India's cultural heritage.

Other Constitutional Provisions on Languages

- **Eighth Schedule:** Lists **22 official languages**; Classical languages are not separately mentioned under the Eighth schedule.
- **Article 120:** Parliament conducts business in **Hindi or English**; members may speak in native languages with permission.
- **Article 210:** Allows **Hindi, English**, or state languages in legislative matters.
- **Article 345:** States may adopt one or more languages for **official purposes**; **English** continues until a decision is made.
- **Classical Language Status**
 - **Classical Languages (Shastriya Bhasha):** Languages with a **deep historical background**, rich **literary traditions**, and **cultural heritage**.
 - **Contributions:** These languages significantly contribute to **intellectual and cultural development**, providing insights into **literature, philosophy, and religion**.
 - Established in **2004** for languages with high antiquity and **rich cultural heritage**.
 - **Benefits:** Financial aid, awards, and university chairs for scholars.
 - **Languages with Classical Status:** **Tamil (2004)**, **Sanskrit (2005)**, **Telugu (2008)**, **Kannada (2008)**, **Malayalam (2013)**, **Odia (2014)**.
 - Marathi, Pali, Prakrit, Assamese, and Bengali have been added to the Classical Language list recently in October 2024.
- **Revised Classical Language Status (2024)**
 - **Linguistics Expert Committee (July 2024):** revised the criteria for classical status. It includes members from the **Ministries of Home and Culture** and is chaired by the President of **Sahitya Akademi**.
- **Criteria for Classical Language Status**
 - **Ancient Origin:** High **antiquity** of early texts or recorded history, spanning **1,500-2,000 years**.
 - **Literary Heritage:** A body of ancient texts considered **valuable heritage** by generations.
 - **Originality:** **Distinct literary tradition**, not borrowed from other communities.
 - **Discontinuity:** Clear separation between the **classical language** and its **modern forms**.
 - **Newly Approved Classical Languages (2024):** **Marathi, Bengali, Assamese, Pali, and Prakrit**.

